

PUBLIC VERSION

CONFIDENTIAL MATERIALS

EXCLUDED

Docket No. 16-02

**RESPONDENT'S OPPOSITION TO COMPLAINANT'S PROPOSED FINDINGS
OF FACT ON ITS MOTION FOR SUMMARY JUDGMENT**

THE FEDERAL MARITIME COMMISSION
800 North Capitol Street, NW, Washington, D.C.

D. F. YOUNG, INC.,
Complainant,
v.
NYK LINE (NORTH AMERICA)
INC.,
Respondent.

DOCKET NO. 16-02

RESPONDENT'S OPPOSITION TO
COMPLAINANT'S PROPOSED
FINDINGS OF FACT ON ITS
MOTION FOR SUMMARY
JUDGMENT.

As used in this Opposition Statement, "DFY" means the Complainant, and "NYK" means the Respondent.

OBJECTIONS

- A. NYK objects to pp. 28-29 [REDACTED].
[REDACTED].
- (a) A motion for summary judgment may only be based on materials in the record including depositions, documents, electronically stored information, affidavits or declarations, stipulations, admissions, or interrogatory answers. F.R.Civ.P. 56(c)(1).
- (b) DFY's argument comprises only the conclusions of counsel with no supporting facts to show that [REDACTED].
[REDACTED].
- B. NYK objects to DFY's PFF nos. 1-18, 32-34, 38, 40, 41, 42, 58-60, 61-65, 66-68, and 74 on grounds that the proposed facts, even if true, are not material to the resolution of DFY's summary judgment motion.

- 1) “Material facts” are those which, under substantive law, might affect the outcome of the suit. *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248 (1986).
- 2) To win summary judgment, a movant must show the absence of an issue as to any “material fact.” F.R.Civ.P. 56(a).
- 3) With respect to PPF nos. 1-18 and 34, [REDACTED]
[REDACTED]
[REDACTED] is immaterial to and cannot change the plain meaning of Tariff NYKA-156, Rule 9. *See, NYK’s Brief in Opp.*, paras. 11-19.
- 4) Neither does Schenkers’ past work have any probative bearing on whether DFY has met the requirements of 46 C.F.R. 515.42(c).
- 5) With respect to PPF nos. 32-34, 38, 40, 41, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- 6) With respect to PPF nos. 58-60 and 66-68, these purport to show that DFY never waived its right to forwarder compensation. However, such a showing is immaterial because NYK is not defending on grounds of waiver and DFY never had such a right to waive. *See, NYK’s Opp. Brief*, paras. 7(b), 20-21.
- 7) With respect to PPF nos. 61-65, whatever may have transpired [REDACTED]
[REDACTED] cannot change the plain,

unambiguous language of Tariff NYKS-156, Rule 9 or prove compliance with 46 C.F.R. 515.42(c). *See, NYK's Opp. Brief, paras. 11-19 and POINT 3,*

Motion to Disregard

NYK moves that so much of DFY's Proposed Findings of Fact as are objected to above be disregarded.

Responses

NYK's responses below are subject to the above objections.

A. NYK's Tariff

1. Admitted.
2. Admitted.
3. Admitted as true insofar as it goes, but fails to note that Rule 9 limits forwarder compensation to the "gross freight" which it defines to include the "tariff rate" and applicable charges. There is no provision for payment of compensation based on service contract rates. *RX 26.*
4. Denied. The Rule 9 rate of compensation applies only to the "gross freight" as explained in para. 3 above. *RX 26.*

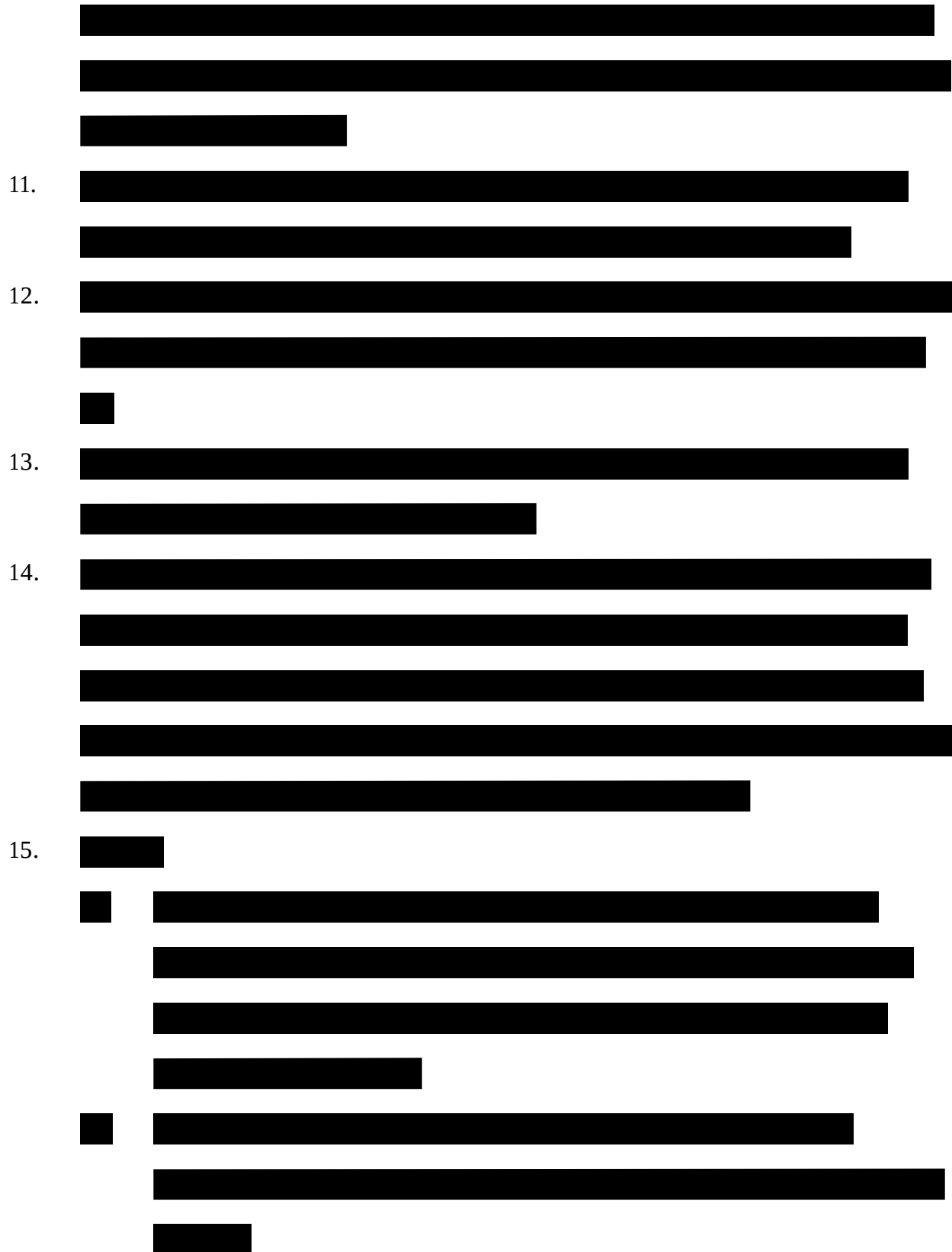
B. Ford Freight Forwarding Prior to DFY

5. [REDACTED]
6. [REDACTED]
7. [REDACTED]

8. [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

9. [REDACTED]
- [REDACTED] [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

10. [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]



16. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

17. [REDACTED]

18. [REDACTED]

19. [REDACTED]

20. [REDACTED]

21. [REDACTED]

22. [REDACTED]

23. [REDACTED].

24. [REDACTED]

25. [REDACTED]

26. [REDACTED]

27. [REDACTED]

28. [REDACTED]
[REDACTED]
[REDACTED]

29. [REDACTED]

30. [REDACTED]

31. [REDACTED]

32. [REDACTED]

[REDACTED] [REDACTED]
[REDACTED]

(b) [REDACTED]

[REDACTED]

[REDACTED]

33. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[illegible]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

35.

[REDACTED]

[REDACTED]

[REDACTED]

36.

[REDACTED]

[REDACTED]

37.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

38.

- [REDACTED]
- [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

39. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

40. [REDACTED]

[REDACTED]

41.

11/11/2016

42.

43.

44.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

45.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

46.

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
47. [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
48. [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
49. [REDACTED]
- [REDACTED]
50. Admitted insofar as it goes but the proposed fact omits that:
- (a) The interaction was via emails showing Ford email addresses, not DFY's, for most of the employees referred to.
- (b) The contacts list given NYK shows Ford email addresses for most of the employees identified in *DFY's Exhibit Q* with no indication that they work for DFY.

DFY's Exhibit FF; RX-086A:12-19.

51. Denied.

(a) If DFY did not perform its contractual duties to Ford, such as sending 300 EDI messages, Ford would have had to do so itself since it is the shipper's obligation to provide the Carrier with the relevant shipment information before shipment. *RX- 280:18 to RX-284:21.*

[REDACTED]

52. Denied.

[REDACTED]

53. Admitted.

54. Admitted.

55. Admitted,

56. [REDACTED]

57. [REDACTED]

58. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

59. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

60. [REDACTED]
[REDACTED] [REDACTED]
[REDACTED]
[REDACTED] [REDACTED]
[REDACTED]

[REDACTED]

61. [REDACTED]
[REDACTED]

62. [REDACTED]

63. [REDACTED]

- [REDACTED] [REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]

64. [REDACTED]
[REDACTED]

65. [REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED] [REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

- [REDACTED] [REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
67. [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
68. [REDACTED]
69. [REDACTED]
70. [REDACTED]
71. [REDACTED]
72. [REDACTED]

73. [REDACTED]

[REDACTED]

[REDACTED]

74. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

H. DFY's Demands for Freight Forwarder Compensation

75. Admitted.

76. Admitted.

77. Denied except admits:

- (a) Nonpayment of DFY's demands for forwarder compensation on Ford Shipments; and

(b) [REDACTED]

[REDACTED]

78. Same as para, 60 above.

79. [REDACTED]

80. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

I. NYK's November 2, 2016 Tariff Revocation

81. Admitted.

82. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

83. Admitted.

84. Denied.

(a) NYK ceased paying forwarder compensation as soon as the decision was made. Since then no forwarder compensation has been paid for new automobile cargoes.

- (b) The decision was motivated by the uncertainty as to whether the Commission would hold that Rule 9, as written, applies to service contract rates.

J. Compensation Due

85.

[REDACTED]

86. Denied for the reasons set out in:

- (a) NYK's Motion for a Summary Decision; and
- (b) NYK's opposition to DFY's Motion for Summary Judgment.

A party is entitled to summary judgment only when it shows that (1) there is no genuine issue of fact, and (2) it is entitled to judgment as a matter of law. DFY has made no such factual or legal showing.

Dated: White Plains, NY, January 30, 2017

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